

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Complex Law and Motion Calendar
Honorable David A. Silberman
800 North Humboldt Street, San Mateo, CA 94401
Department 11, Courtroom G
Monday, September 14, 2026 at 3 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing to the newly assigned department pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation

Notice of Appearance and Courtesy Copies

1. Email Dept11@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 964 0802 Password: 734616

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case

Title / Nature of Case

03:00 PM

25-CIV-05940

NERY GERMAN VS JOBTRAIN, INC.

NERY GABRIELA GERMAN
JOBTRAIN, INC.

MIRIAM LEIGH SCHIMMEL
DANA L. BURCH

DEFENDANT JOBTRAIN, INC.'S MOTION TO COMPEL ARBITRATION AND DISMISS THE CLASS-WIDE CLAIMS

TENTATIVE RULING:

Defendant JobTrain, Inc.'s ("Defendant") Motion to Compel Arbitration of Plaintiff's claims is DENIED because the agreement to arbitrate is unconscionable.

Defendant has met its initial burden and proved by a preponderance of evidence that an arbitration agreement was entered into by the parties and the dispute is covered by the agreement. (Knight, Cal. Prac. Guide: Alt. Disp. Res. (Rutter, Dec. 2025 Update) ¶ 5:320.)

Defendant presents the declaration of Calvin Lai, Defendant's Human Resources manager, in which Mr. Lai states that Plaintiff Nery Gabriela German ("Plaintiff") completed her onboarding process on October 6, 2021, using a platform provided by Defendant's "PEO" ("Professional Employer Organization"), Insperity PEO Services, L.P. ("Insperity"). (Lai Dec., filed Oct. 16, 2025, ¶ 11; see also MPA, p. 6:6-11.) Mr. Lai states that as part of this onboarding, Plaintiff signed a Mutual Arbitration Agreement, which Mr. Lai attaches as Exhibit 1 of his declaration ("Agreement"). (Id. at ¶ 12, Ex. 1.)

Exhibit 1 of Mr. Lai's declaration shows a document titled Mutual Arbitration Agreement with Defendant's and Plaintiff's names at the top of the first page. (Agreement, p. 1.) At the bottom of the last page, it has the words "Digitally signed by: Nery German [¶] 10/6/2021 11:48:03 AM - Insperity Premier" above the signature line for "Employee's Signature," and Plaintiff's name above the line for "Printed Name Per Social Security Card." (Id. at p. 8.)

Defendant also provides the declaration of Bobbie Ratzlaff, Insperity's Supervisor of Product Management Technology. (Ratzlaff Dec., filed Oct. 16, 2025, ¶ 1.) Ms. Ratzlaff describes that when using Insperity's onboarding technology for the first time, a prospective employee is prompted to create a unique identification and password. (Id. at ¶ 5.) Ms. Ratzlaff provides information about Plaintiff's specific identification, or "Login Id." (Ibid.) Ms. Ratzlaff attaches an "audit workflow chart" which shows when Plaintiff entered the system and when she accessed the Agreement. (Id. at ¶ 6, Ex. 1.) Ms. Ratzlaff also attaches an audit log showing when Plaintiff signed the Agreement. (Id. at ¶ 7, Ex. 2.) Plaintiff does not dispute that she signed the Agreement.

Defendant has also demonstrated that the FAA applies to the contract because the Agreement explicitly states that the FAA applies. (Agreement, § 7; see *Barrera v. Apple American Group, LLC* (2023) 95 Cal.App.5th 63, 76) Plaintiff does not dispute the applicability of the FAA.

The Court notes that Defendant did not raise delegation in its motion or its reply, therefore the Court does not consider the issue and deems it waived. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 768-771.)

Plaintiff argues that the Agreement is both procedurally and substantively unconscionable. The Court agrees.

Unconscionability has both a substantive and procedural element. (*Fuentes v. Empire Nissan* (2026) 19 Cal.5th 93, 103.) “ ‘The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power.’ ” (*Oto, LLC. V Kho* (2019) 8 Cal.5th 111, 125.) This element “is generally established by showing the agreement is a contract of adhesion, *i.e.*, a ‘standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ ” (*Ramirez v. Charter Commc’ns, Inc* (2024) 16 Cal.5th 478, 492.) Substantive unconscionability “ ‘pertains to the fairness of an agreement’s actual terms and to assessments of whether they are overly harsh or one-sided.’ ” (*Pinnacle Museum Tower Ass’n v. Pinnacle Market Development LLC* (2012) 55 Cal.4th 223, 246.)” (*Kho*, 8 Cal. 5th at 125.)

“Both procedural and substantive unconscionability must be shown for the defense to be established, but they need not be present in the same degree. Instead, they are evaluated on ‘a sliding scale.’ The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to conclude that the term is unenforceable. Conversely, the more deceptive or coercive the bargaining tactics employed, the less substantive unfairness is required. A contract’s substantive fairness must be considered in light of any procedural unconscionability in its making. The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement. The burden of proving unconscionability rests upon the party asserting it.”

(*Stoker v. Blue Origin, LLC* (2026) 120 Cal.App.5th 91, 104 [numerous citations and internal quotations omitted].)

Plaintiff has established, and Defendant does not seriously dispute, that the Agreement is a contract of adhesion because it is standardized and has been drafted by Defendant, the party with superior strength. (*Ramirez*. 16 Cal.5th at 492: Procedural unconscionability “is generally established by showing the agreement is a contract of adhesion, *i.e.*, a ‘standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ ”)

However, the Agreement contains an opt-out provision, which “tends to undercut a finding of procedural unconscionability.” (*Cluck v. GEO Secure Services, LLC* (2026) 122 Cal.App.5th 249.) The provision is at the bottom of the sixth page of the Agreement, in a section titled “Right to Opt-Out.” (Agreement, § 2.) The section has a link which leads to a 2-page PDF form. The form consists of spaces to write in the company name, employee’s name, and SSN, and three paragraphs written in plain English and translated into Spanish. The form says that it must be printed out, signed, and sent to an e-mail address within 30 days of signing the Agreement.

Like the agreement considered by the court in *Cluck*, the Agreement here does not include a check box allowing Plaintiff to opt out and only has a signature line for agreeing, not for disagreeing. However, the opt-out procedure here is distinguishable from that of the agreement in *Cluck* because it provides Plaintiff with a form where she has to fill out minimal personal information, and that she can scan and send to an e-mail address. These steps are not “convoluted” like those in *Cluck* but instead are straightforward and

relatively simple. Plaintiff states that she did not have a printer at home at the time she signed the Agreement, but she did not fill out the forms at home. (See German Dec., ¶ 16.) But Plaintiff does not state that there was not a printer available at work, or that she asked to access one and was denied. On balance, the Agreement therefore presents only a minimal degree of procedural unconscionability.

Plaintiff also fails to demonstrate oppression or surprise. Mr. Lai states in his declaration that “Plaintiff was afforded the opportunity to review the policies, procedures, and agreements, and to ask JobTrain or Insuperity any questions or voice any concerns.” (Lai Dec., ¶ 15.) Ms. Ratzlaff states that according to the Insuperity system, Plaintiff “logged into the system and began the onboarding process on October 5, 2021 at 4:56:54 PM and completed her enrollment forms on October 6, 2021 at 5:27:22 PM.” (Ratzlaff Dec., ¶ 6, Ex. 1.) She states that Plaintiff accessed the Agreement on October 6, 2021 at 11:46:23 AM. (Ibid.)

Plaintiff states in her declaration that she does not recall the onboarding paperwork being presented as optional (German Dec., ¶ 9); that no one told her the Mutual Arbitration Agreement was optional (Id. at ¶ 11); that she does not remember anyone telling her the documents included an arbitration agreement (Id. at ¶ 12); and that she “treated the paperwork as something [she] needed to get done while also doing [her] regular job” (Id. at ¶ 14). Plaintiff also states that she was told she had to take time out of her workday to complete forms, and that she needed to complete the forms so the new payroll could start. (Id. at ¶ 8.)

But Plaintiff fails to rebut Mr. Lai and Ms. Ratzlaff’s statements. Plaintiff does not set forth any facts that she was pressured to complete the forms in a certain amount of time or was given a set deadline. She also fails to affirmatively state that she was misled by Defendant regarding the forms or that she was instructed to complete the paperwork while simultaneously performing job duties. Plaintiff simply states that this was her understanding, or that she does not recall. This is insufficient to rebut Defendant’s affirmative evidence from Mr. Lai that Plaintiff had the opportunity to ask questions and failed to do so; and does not rebut Ms. Ratzlaff’s evidence, which shows that Plaintiff completed the paperwork over the course of two days, suggesting that she had a chance to review and sign all necessary paperwork.

Nevertheless, because there is at least a minimal degree of procedural unconscionability, the Court proceeds to consider whether there is substantive unconscionability and here the Court finds that the agreement is quite substantively unconscionable.

Plaintiff argues that the Agreement is overbroad because its scope covers far more than Plaintiff’s employment disputes and the Court agrees.

The first paragraph of the Agreement states the following:

Mutual Arbitration Agreement. Except as this Arbitration Agreement otherwise provides, Insuperity, you, and Client Company mutually agree to resolve by arbitration the following, which constitute “**Covered Claims**”: (a) all claims or disputes related to or arising out of my application for employment, my employment, or the termination of my employment with Insuperity and/or Client Company, (b) *all claims that Insuperity and/or Client Company may have against me, and/or* (c) *all claims that I may have against Covered Persons*. “**Covered Persons**” means: (i) Insuperity and its parents, subsidiaries, affiliates, and dbas, and their respective officers, directors, employees, or agents, (ii) Insuperity’s benefit plans, plan sponsors, fiduciaries, administrators, and their respective affiliates or agents, and/or (iii) Client Company and its officers, directors, employees, affiliates or agents. *Any and all Covered Persons may enforce this Arbitration Agreement.* All Covered Claims will be decided by a single arbitrator through final and binding arbitration and not by way of court or jury trial.

(Agreement, § 1, bold original, italics added.) The subsection following that section states:

Covered Claims. This Arbitration Agreement is intended to be as broad as legally permissible, and, except as it otherwise provides, Covered Claims include, but are not limited to, *any and all past, present, and future claims or disputes involving Covered Persons*, including contract claims; tort, defamation and other common law claims; wage and hour claims, including claims relating to pay, minimum wage, overtime, overtime exemption classification, wage penalties, and meal and rest breaks; discrimination, harassment, and retaliation claims, including claims based on race, creed, color, religion, sex, age, disability, workers compensation, leave status, national origin, ancestry, sexual orientation, marital status, veteran or military reserve status, or any other characteristic protected by federal, state or local law; claims arising under the Defend Trade Secrets Act, Fair Credit Reporting Act, Civil Rights Act of 1964, Americans With Disabilities Act, Age Discrimination in Employment Act, Family Medical Leave Act, Fair Labor Standards Act, Employee Retirement Income Security Act (except for claims for employee benefits under any benefit plan sponsored by the Company and covered by the Employee Retirement Income Security Act of 1974), Affordable Care Act, Genetic Information Non-Discrimination Act, Uniformed Services Employment and Reemployment Rights Act, Worker Adjustment and Retraining Notification Act, Older Workers Benefits Protection Act of 1990, Occupational Safety and Health Act, Consolidated Omnibus Budget Reconciliation Act of 1985, False Claims Act; and claims or causes of action arising under or relating to any and all federal, state, or local constitutional, statutory, regulatory, or common laws now or hereafter recognized.

(Id. at § 1(A), bold original, italics added.)

These sections are analogous to sections that have been found to be overbroad by courts of this state. (See *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, 324-325; *Stoker*, 120 Cal.App.5th at 107-108; *Phan v. Knight Sacramento SU Inc.* (2026) 121 Cal.App.5th 641, 654.)

The “all claims” language of Sec. 1 does not simply confirm the mutuality of coverage as Defendant claims and instead extends the possible claims that are covered by arbitration beyond those arising from Plaintiff’s employment. Subsections (a), (b), and (c) of “Covered Claims” are presented as distinct categories of claims and there is no language to suggest that the qualifications of section (a) apply to section (b) or (c). Sec. 1(A) then leaves no doubt about this, where it provides a different definition of “Covered Claims” than in Sec. 1 and says that the Agreement covers any and all past, present, and future claims or disputes involving Covered Persons, explicitly going beyond disputes arising out of Plaintiff’s employment with Defendant.

As in *Cook* and *Phan*, Defendant does not provide any justification for this broad scope. In fact, Defendant does not even acknowledge the broad scope and instead asks for a narrower interpretation of the Agreement which the language of the Agreement does not support.

The provisions also demonstrate a lack of mutuality. While the “Covered Claims” as defined in Sec. 1 include all claims that Plaintiff may have against Covered Persons, the section does not include reciprocal claims that Covered Persons may have against Plaintiff. This is reinforced by the second to last sentence of Sec. 1, which states that any and all Covered Persons may enforce the Agreement, but again fails to state that Plaintiff may enforce the Agreement against those persons.

Both parties argue that *Ayala-Ventura v. Superior Court* (2026) 119 Cal.App.5th 241, 259 and its discussion of *Cook* supports their respective arguments. *Ayala-Ventura* involved a lawsuit brought by an

employee against her employer, “CCS Facility Services-Fresno Inc.,” a company which “provides commercial janitorial services” (“CCS”). (*Ayala-Ventura* at 246.) CCS sought to compel arbitration, but the plaintiff contended that the arbitration agreement she signed with CCS was unconscionable. (*Ibid.*)

The Court in *Ayala-Ventura* evaluated the plaintiff’s argument regarding lack of mutuality as follows:

Ayala-Ventura points out the Agreement defines “ ‘Company’ ” as: “ ‘PBC SolutionOne, Inc. dba CCS Facility Services and all of its related entities, parents, and subsidiaries.’ ” She contends this definition lacks inclusion of the “ ‘employees or agents in their capacity as employees or agents’ ” referenced in the same section, and when read together with the Company definition, requires Ayala-Ventura to arbitrate her claims against CCS and its employees and agents, but does not likewise require CCS’s employees and agents to arbitrate their claims against her. Ayala-Ventura relies on *Cook* again to argue the agreements in both cases are similarly unconscionable.

The employee in *Cook* was obliged to arbitrate her claims against USC, its related entities, as well as its “officers, trustees, administrators, employees or agents,” but only USC was bound to arbitrate its claims against the plaintiff. The agreement lacked mutuality because USC’s “ ‘related entities’ ” were not bound to it. (*Cook, supra*, 102 Cal.App.5th at p. 319.) Here, the Agreement’s definition of “Company” expressly includes CCS’s related entities and binds those entities to arbitration. Cook was also bound to arbitrate any claims against USC’s officers, trustees, administrators, employees or agents “ ‘in their capacity as such *or otherwise.*’ ” (*Id.* at p. 317, italics added.) This language was understood as requiring Cook to arbitrate any claims against these individuals even where they were not acting in their identified capacity. In contrast, the Agreement expressly limits arbitration to claims against CCS’s employees or agents *in their capacity* as such. Any claims Ayala-Ventura may have against employees or agents unrelated to their role are therefore not subject to the Agreement.

We are not convinced the Agreement’s purported failure to require CCS’s employees and agents to arbitrate their claims against Ayala-Ventura results in a lack of mutuality between the contracting parties. The Agreement is between CCS and Ayala-Ventura; it is not between her and CCS’s employees and agents. A lack of mutuality generally consists of the stronger party imposing terms on the weaker party without accepting those terms itself. (*Armendariz, supra*, 24 Cal.4th at pp. 118–120.) But this is not a contract where only the weaker party’s claims are subject to arbitration. The Agreement “applies equally to employee and employer initiated claims, carrying the ‘modicum of bilaterality’ required by law.” (*Vo v. Technology Credit Union* (2025) 108 Cal.App.5th 632, 644.) It gives an illustrative list of possible arbitrable claims but makes clear the list is not exhaustive because potential claims “are not limited to” those listed. (*Id.* at pp. 644–645; *Baltazar, supra*, 62 Cal.4th at p. 1249 [illustrative list was not meant to be exhaustive and casts no doubt on the agreement’s comprehensive reach to apply to all claims between the employee and employer].) Excluded claims include workers’ compensation and unemployment claims, which “are excluded from arbitration by law.” (*Ramirez, supra*, 16 Cal.5th at p. 498.) The Agreement otherwise only precludes claims both parties may have for injunctive relief. (Cf. *Abramson, supra*, 115 Cal.App.4th at pp. 664–665 [trade secret carve-out in an arbitration agreement unconscionably permitted only the employer to seek injunctive relief].)

(Id. at 258-259.)

Considering the case before the Court in its context, it is more analogous to *Cook* than to *Ayala-Ventura*. *Cook* and *Ayala-Ventura* therefore support this Court's finding that the language lacks mutuality. The Covered Claims defined in Sec. 1(A) include "any and all . . . future claims or disputes involving Covered Persons." As in *Cook* and as described above, it is improper for the Agreement to cover future claims against "Covered Persons" as it goes well beyond the scope of Plaintiff's employment. (See *Cook, supra*, at 325-326.) Additionally, "Covered Persons" include Insperity, a publicly traded company, and various related entities, as well as "Insperity's benefit plans" and various entities related to that plan. The language does not provide for Plaintiff to enforce arbitration as to claims that those "Covered Persons" would have against her, demonstrating a prejudicial lack of mutuality with no justification.

Plaintiff next argues that the Agreement's class action waiver is inherently and unfairly one-sided, and that the Agreement purports to waive Plaintiff's right to bring a PAGA action, which is impermissible under California law.

The Agreement's class action waiver section states:

The parties agree that there is no right or authority for any Covered Claim to be brought, heard, or arbitrated as a class or collective action ("Class Action Waiver"). Insperity, Client Company, and I agree to bring any Covered Claim in arbitration on an individual basis only, and not as a class and/or collective action. No Arbitrator (as defined below) shall have any authority to hear or arbitrate any class or collective action dispute. The Class Action Waiver shall be severable from this Arbitration Agreement if there is a final judicial determination that all or part of the Class Action Waiver is unenforceable. In such instances, the class action and/or collective action to that extent must be litigated in a civil court of competent jurisdiction, but the portion of the Class Action Waiver that is enforceable shall be enforced in arbitration. Additionally, this Class Action Waiver shall be severable in any case in which the dispute is filed as an individual action and severance is necessary to ensure that the individual action proceeds in arbitration. Regardless of anything else in this Arbitration Agreement or the AAA Rules (defined below), the enforceability, applicability and validity of the Class Action Waivers may be determined only by a court and not by an Arbitrator.

(Agreement, § 1(F).) The section can fairly be read to permit Plaintiff the right to bring nonwaivable individual PAGA claims in court. Although the section is ambiguous, reading it in a manner that renders the section valid, the Agreement does not improperly limit individual PAGA claims and is not unconscionable on these grounds. (See *Ayala-Ventura, supra*, at 256: " 'Where a contract is susceptible to two interpretations, one which renders it valid and the other which renders it void, a court should select the interpretation that makes the contract valid.' [Citations].")

Lastly, Plaintiff argues that the Agreement improperly limits discovery because it does not automatically provide the right to propound interrogatories and does not provide for the deposition of a person most qualified ("PMQ").

The Agreement states the following as to the discovery allowed in arbitration:

(iv) Either party may file dispositive motions, and the Arbitrator will apply the applicable standards to dispositive motions under Rules 12 or 56 of the Federal Rules of Civil Procedure.

(v) The parties have the right to conduct adequate civil discovery, and to present witnesses and evidence. Each party has the right to: (a) take the deposition of two individual fact witnesses and any expert witness designated by another party, (b) propound requests for production of documents to any party, and (c) subpoena witnesses and documents, including documents relevant to the case from third parties. Additional discovery may be had by mutual agreement of the parties, and in the absence of mutual agreement, the Arbitrator will have exclusive authority to entertain requests for additional discovery and to grant or deny such requests, based on the Arbitrator's determination whether additional discovery is warranted by the circumstances of a particular case.

(Agreement, § 1(G)(iv)-(v).) Contrary to Plaintiff's argument, the Agreement arguably does allow for deposition of a PMQ where it states that each party has the right to subpoena witnesses. Even if that were not the case, the Agreement allows the arbitrator to grant further discovery if warranted by the circumstances of the case. The Court must "assume that the arbitrator will operate in a reasonable manner in conformity with the law." (*Dotson v. Amgen, Inc.* (2010) 181 Cal.App.4th 975, 984.) The discovery provisions are therefore not unconscionable.

Nevertheless, having found that two aspects (breadth [both duration and scope] and mutuality) of the Agreement render it unconscionable, the Court now turns to the issue of severability.

The basic principles of severability that emerge from Civil Code section 1599 and the case law of illegal contracts appear fully applicable to the doctrine of unconscionability. Courts are to look to the various purposes of the contract. If the central purpose of the contract is tainted with illegality, then the contract as a whole cannot be enforced. If the illegality is collateral to the main purpose of the contract, and the illegal provision can be extirpated from the contract by means of severance or restriction, then such severance and restriction are appropriate.

(*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th at 124.)

"An unconscionable contractual term may be severed and the resulting agreement enforced, unless the agreement is permeated by an unlawful purpose, or severance would require a court to augment the agreement with additional terms. Severance may be properly denied when the agreement contains more than one unconscionable provision, and there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement."

(*Cook*, 102 Cal.App.5th at 328-329 [citations and internal quotations omitted].) The Agreement has a severance clause which states:

Except as stated in the section entitled "Class and Collective Action Waivers" above, if any other term or provision of this Arbitration Agreement is held to be invalid, void, or unenforceable, the remainder of the provisions of this Arbitration Agreement shall remain in full force and effect and shall in no way be affected, impaired, or invalidated.

(Agreement, § 4.) But this is not dispositive of the issue of severance. See *Stoker*, 120 Cal.App.5th at 113:

Finally, the court noted, if a contract contains a severance clause, a court "should take it into account as an expression of the parties' intent that an agreement curable by removing defective terms should otherwise be enforced. [Citations.] That said, we note that the parties to an agreement cannot divest a trial court of its discretion under Civil Code section 1670.5 by including such a severance clause."

The Court finds that severance is improper under the circumstances. Several courts which have considered agreements with issues of overbreadth and lack of mutuality without justification have found that the agreements are permeated with unconscionability and should not be severed. (*See Phan*, 121 Cal.App.5th at 658; *Hasty v. American Automobile Assn.* (2023) 98 Cal.App.5th 1041, 1064-1065; *Stoker*, 120 Cal.App.5th at 114-115.) In contrast, the *Dotson* court in considering an unconscionable discovery provision found that severance was proper, reasoning that there was no indication that the law was sufficiently clear at the time the agreement was signed to lead to the conclusion that the provision was drafted in bad faith; and that the provision did not indicate a “systematic effort to impose arbitration on an employee not simply as an alternative to litigation, but as an inferior forum that works to the employer’s advantage.” (*Dotson*, 181 Cal.App.4th at 985-986.)

This case is analogous to *Phan*, *Hasty*, and *Stoker* and distinguishable from *Dotson*. To render the Agreement valid, the Court would have to sever the majority of Sec. 1 and the entirety of Sec. 1(A). These are not collateral provisions, but are instead the central provisions of the Agreement, which set the stage for the Agreement’s applicability and speak to the Agreement’s purpose. The language at issue in the Agreement appears to be written to intentionally exceed the boundaries of permissible clauses, because it explicitly covers far more than issues arising out of Plaintiff’s employment and provides significant rights to third parties, including Insperity, who is not Plaintiff’s employer. Defendant makes no attempt to explain why Insperity would need these far-reaching rights. As the *Stoker* court found, enforcing this Agreement may serve to incentivize employers to draft similar agreements, relying on the court to sever the provisions if a sophisticated employee is ever able to bring the issue to court. Accordingly, the Court would decline to sever the unconscionable provisions even were it feasible. The arbitration agreement is therefore unenforceable, and the motion must be denied.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.
